

HOUSE No. 4876

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola and Michael J. Rodrigues

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to strengthening supports for overcomers of abuse.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>12/3/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>4/7/2026</i>

HOUSE No. 4876

By Representative Fiola of Fall River and Senator Rodrigues, a joint petition (subject to Joint Rule 12) of Carole A. Fiola relative to survivors and holders of abuse or harassment prevention orders. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to strengthening supports for overcomers of abuse.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 46 of the General Laws is hereby amended by inserting after
2 section 6 the following section:-

3 Section 6A. (a) No person shall be the next of kin, for the purposes of this chapter, for a
4 deceased relative if the relative had an abuse prevention order, pursuant to chapter 209A, or a
5 harassment prevention order, pursuant to chapter 258E, against the person at the time of the
6 relative's death.

7 (b) Upon the death of a person with an abuse prevention order, pursuant to chapter 209A,
8 or a harassment prevention order, pursuant to chapter 258E, against them at the time of their
9 death, the department of criminal justice information shall notify the holder of the abuse
10 prevention order or the harassment prevention order of the person's death.

11 SECTION 2. Section 1 of chapter 209A of the General Laws, as appearing in the 2024
12 Official Edition, is hereby amended by striking out, in line 34, the word "or".

SECTION 3. Clause (a) of the definition of “Coercive control” in said section 1 of said chapter 209A, as so appearing, is hereby amended by adding the following subclause:-

(x) facilitating contact or abuse by a person against whom an abuse prevention order has been issued; or

SECTION 4. Said chapter 209A is hereby further amended by inserting after section 8 the following section:-

Section 8A. Upon the request of the holder of an abuse prevention order under this chapter, an agency of the commonwealth shall make best efforts to remove the person’s name, address, contact information or other identifiable information from the agency’s public website.

SECTION 5. Said chapter 209A is hereby further amended by adding the following section:-

Section 12. The department of the trial court shall establish a training and education program for survivors of domestic abuse and persons who hold or are attempting to obtain an abuse prevention order under this chapter or a harassment prevention order under chapter 258E. The training and education program shall include information about: (i) the rights and recourses under the law available to survivors and holders of abuse or harassment prevention orders; (ii) public and private support services and resources for survivors and persons holding abuse or harassment prevention orders; and (iii) any other topics the department deems necessary.

SECTION 6. Chapter 258E of the General Laws is hereby amended by inserting after section 10 the following section:-

33 Section 10A. Upon the request of the holder of a harassment prevention order under this
34 chapter, an agency of the commonwealth shall make best efforts to remove the person's name,
35 address, contact information or other identifiable information from the agency's public website

36 SECTION 7. This act shall be known as the Overcomer's Law.